



Reprinted
February 20, 2026

ENGROSSED HOUSE BILL No. 1377

DIGEST OF HB 1377 (Updated February 19, 2026 4:18 pm - DI 149)

Citations Affected: IC 3-11; IC 3-12.

Synopsis: Straight ticket voting. Repeals provisions that prohibit counting straight party votes for candidates for election to an at-large district to which more than one person may be elected. Removes a provision requiring particular ballot placement when more than one candidate may be elected to an office. Provides that if a voter votes a straight party ticket and also selects one or more individual candidates for an office to which more than one person may be elected, the: (1) individual votes shall be counted unless the total number of individual votes is greater than the number of persons to be elected to the office; (2) straight party votes for the office shall not be counted; and (3) straight party votes for other offices on the ballot shall be counted. Makes conforming amendments. Specifies how a vote is counted with a straight ticket on a paper ballot.

Effective: January 1, 2027.

Payne, Wesco, Lawson, Prescott

(SENATE SPONSOR — JOHNSON T)

January 8, 2026, read first time and referred to Committee on Elections and Apportionment.
January 14, 2026, reported — Do Pass.
January 20, 2026, read second time, amended, ordered engrossed.
January 21, 2026, engrossed.
January 22, 2026, read third time, passed. Yeas 71, nays 20.

SENATE ACTION

January 27, 2026, read first time and referred to Committee on Elections.
February 16, 2026, amended, reported favorably — Do Pass.
February 19, 2026, read second time, amended, ordered engrossed.

EH 1377—LS 6830/DI 144



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February 20, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED HOUSE BILL No. 1377

A BILL FOR AN ACT to amend the Indiana Code concerning elections.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 3-11-2-9, AS AMENDED BY P.L.195-2025,
2 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JANUARY 1, 2027]: Sec. 9. (a) The device of each political party
4 described in section 6 of this chapter shall be:
5 (1) enclosed in a circle not less than three-fourths (3/4) of an inch
6 in diameter; and
7 (2) placed under the name of the party or independent ticket, as
8 required by section 10 of this chapter.
9 (b) A device of a political party must not be printed on a ballot if:
10 (1) there are no candidates of that political party; or
11 (2) the only candidates:
12 (A) of the political party; or
13 (B) that have stated an affiliation with the political party under
14 IC 3-8-2.5-2.5(a)(5);
15 are for election to school board offices ~~or offices to which more~~
16 ~~than one (1) individual is to be elected and~~ which will not be
17 credited with a vote under ~~IC 3-12-1-7 or~~ IC 3-12-1-7.1 if a voter

EH 1377—LS 6830/DI 144



1 casts a straight party ticket.

2 SECTION 2. IC 3-11-2-10, AS AMENDED BY P.L.195-2025,
3 SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
4 JANUARY 1, 2027]: Sec. 10. (a) Public questions shall be placed on
5 the general election ballot in the following order after the statement
6 described in section 7 of this chapter, and the instructions described in
7 subsections (d) and (e) and section 8 of this chapter, if instructions are
8 printed on the ballot:

9 (1) Ratification of a state constitutional amendment.

10 (2) Local public questions.

11 Subject to section 10.1 of this chapter, each public question shall be
12 placed in a separate column on the ballot.

13 (b) The name or title of the political party shall be placed on the
14 general election ballot after the public questions described in
15 subsection (a). The device of the political party shall be placed
16 immediately under the name of the political party. Notwithstanding
17 section 8(b) of this chapter, the instructions for voting a straight party
18 ticket shall be placed to the right of the device on the ballot.

19 (c) The instructions for voting a straight party ticket must conform
20 as nearly as possible to the following:

21 "(1) You are not required to vote a straight party ticket. If you do
22 not wish to vote a straight party ticket, do not make a mark in this
23 section, and proceed to voting the ballot by office.

24 (2) To vote a straight (insert political party name) ticket for all
25 (insert political party name) candidates on this ballot, except for
26 candidates described in (3) below, make a voting mark on or in
27 this circle and do not make any other marks on this ballot.

28 (3) To vote for any candidate for

29 ~~(A) an at-large office (insert county council, city common~~
30 ~~council, town council, or township board if those offices~~
31 ~~appear on this ballot) to which more than one (1) person may~~
32 ~~be elected; or~~

33 ~~(B) a school board office,~~
34 you must make another voting mark for each candidate you wish
35 to vote for. Your straight party vote will not count as a vote for
36 any candidate for that office.

37 (4) If you wish to vote for a candidate seeking a nonpartisan office
38 or on a public question, you must make another voting mark on
39 the appropriate place on this ballot."

40 (d) Except as permitted under section 8(b) of this chapter, if the
41 ballot contains an independent ticket described in section 6 of this
42 chapter and at least one (1) other independent candidate, the ballot



1 must also contain a statement that reads substantially as follows: "A
2 vote cast for an independent ticket will only be counted for the
3 candidates for President and Vice President or governor and lieutenant
4 governor comprising that independent ticket. This vote will NOT be
5 counted for any OTHER independent candidate appearing on the
6 ballot."

7 (e) Except as permitted under section 8(b) of this chapter, the ballot
8 must also contain a statement that reads substantially as follows: "A
9 write-in vote will NOT be counted unless the vote is for a DECLARED
10 write-in candidate. To vote for a write-in candidate, you must make a
11 voting mark on or in the square to the left of the name you have written
12 in or your vote will not be counted."

13 (f) Subject to section 10.1 of this chapter, the list of candidates of
14 the political party shall be placed immediately under the instructions
15 for voting a straight party ticket. The names of the candidates shall be
16 placed three-fourths (3/4) of an inch apart from center to center of the
17 name. The name of each candidate must have, immediately on its left,
18 a square three-eighths (3/8) of an inch on each side.

19 (g) The circuit court clerk may authorize the printing of ballots
20 containing a ballot variation code to ensure that the proper version of
21 a ballot is used within a precinct.

22 SECTION 3. IC 3-11-2-12.4, AS AMENDED BY P.L.109-2021,
23 SECTION 16, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
24 JANUARY 1, 2027]: Sec. 12.4. (a) This section applies whenever more
25 than one (1) candidate may be elected to an office. **However, this**
26 **section does not apply to a school board office.**

27 ~~(b) The office shall be placed on the general election ballot after the~~
28 ~~offices described in section 12 of this chapter and before the offices~~
29 ~~described in section 12.9 of this chapter.~~

30 ~~(c)~~ **(b)** Whenever candidates are to be elected to a county council,
31 city common council, or town council that includes both an at-large
32 member and a member representing a district, the candidates seeking
33 election as an at-large member shall be placed on the ballot before
34 candidates seeking to represent a district.

35 ~~(d)~~ **(c)** The ballot shall contain a statement reading substantially as
36 follows above the name of the first candidate: "To vote for any
37 candidate for this office, you must make a voting mark for each
38 candidate you wish to vote for." ~~A straight party vote will not count as~~
39 ~~a vote for any candidate for this office."~~

40 SECTION 4. IC 3-11-2-12.9, AS AMENDED BY P.L.195-2025,
41 SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
42 JANUARY 1, 2027]: Sec. 12.9. (a) School board offices to be elected



at the general election shall be placed on the general election ballot after the offices described in section ~~12.4~~ **12** of this chapter.

(b) If the ballot contains a candidate for a school board office, the ballot must also contain a statement that reads substantially as follows:

(1) "To vote for a candidate for this office, make a voting mark on or in the square to the left of the candidate's name. A straight party vote will not count as a vote for any candidate for this office.", if only one (1) candidate is to be elected to a school board office.

(2) "To vote for any candidate for this office, you must make a voting mark for each candidate you wish to vote for. A straight party vote will not count as a vote for any candidate for this office.", if more than one (1) candidate is to be elected to a school board office.

(c) Whenever candidates are to be elected to a school board office that includes both an at-large member and a member representing a district, the candidates seeking election as an at-large member shall be placed on the ballot before candidates seeking to represent a district.

SECTION 5. IC 3-11-7-4, AS AMENDED BY P.L.195-2025, SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JANUARY 1, 2027]: Sec. 4. (a) Except as provided in subsection (b), a ballot card voting system must permit a voter to vote:

(1) except at a primary election, a straight party ticket for all of the candidates of one (1) political party by a single voting mark on each ballot card;

(2) for one (1) or more candidates of each political party or independent candidates, or for one (1) or more school board candidates nominated by petition;

(3) a split ticket for the candidates of different political parties and for independent candidates; or

(4) a straight party ticket and then split that ticket by casting individual votes for candidates. ~~of another political party or independent candidate.~~

(b) A ballot card voting system must require that a voter who wishes to cast a ballot for a candidate for election to a school board office ~~or an at-large district to which more than one (1) person may be elected;~~ on at:

~~(1) county council;~~

~~(2) city common council;~~

~~(3) town council; or~~

~~(4) township board;~~

make a voting mark for each individual candidate for whom the voter



wishes to cast a vote. The ballot card voting system may not count any straight party ticket voting mark as a vote for any candidate for ~~an election to a school board~~ office. ~~described by this subsection.~~

(c) A ballot card voting system must permit a voter to vote:

(1) for all candidates for presidential electors and alternate presidential electors of a political party or an independent ticket by making a single voting mark; and

(2) for or against a public question on which the voter may vote.

SECTION 6. IC 3-11-7.5-10, AS AMENDED BY P.L.195-2025, SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JANUARY 1, 2027]: Sec. 10. (a) Except as provided in subsection (b), an electronic voting system must permit a voter to vote:

(1) except at a primary election, a straight party ticket for all the candidates of one (1) political party by touching the device of that party;

(2) for one (1) or more candidates of each political party or independent candidates, or for one (1) or more school board candidates nominated by petition;

(3) a split ticket for the candidates of different political parties and for independent candidates; or

(4) a straight party ticket and then split that ticket by casting individual votes for candidates. ~~of another political party or independent candidates.~~

(b) An electronic voting system must require that a voter who wishes to cast a ballot for a candidate for election to a school board office ~~or an at-large district to which more than one (1) person may be elected; or at:~~

~~(1) county council;~~

~~(2) city common council;~~

~~(3) town council; or~~

~~(4) township board;~~

make a voting mark for each individual candidate for whom the voter wishes to cast a vote. The electronic voting system may not count any straight party ticket voting mark as a vote for any candidate for ~~an election to a school board~~ office. ~~described by this subsection.~~

(c) An electronic voting system must permit a voter to vote:

(1) for as many candidates for an office as the voter may vote for, but no more;

(2) for or against a public question on which the voter may vote, but no other; and

(3) for all the candidates for presidential electors and alternate presidential electors of a political party or an independent ticket



by making a single voting mark.

SECTION 7. IC 3-11-11-10, AS AMENDED BY P.L.227-2023, SECTION 91, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JANUARY 1, 2027]: Sec. 10. If an election is a general or municipal election and a voter desires to vote for all the candidates of one (1) political party or group of petitioners, the voter may make a voting mark on or in a large circle enclosing the device and before the name under which the candidates of the party are printed. The voter's vote shall then be counted ~~for all the candidates under that party name.~~ **in accordance with IC 3-12-1.**

SECTION 8. IC 3-11-13-11, AS AMENDED BY SEA 25-2026, SECTION 2, AND BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JANUARY 1, 2027]: Sec. 11. (a) The ballot information, whether placed on the ballot card or on the marking device, must be in the order of arrangement provided for ballots under this section.

(b) Each county election board shall have the names of all candidates for all elected offices, political party offices, and public questions printed on a ballot card as provided in this chapter. The county may:

- (1) print all offices and questions on a single ballot card; and
- (2) include a ballot variation code to ensure that the proper version of a ballot is used within a precinct.

(c) Each type of ballot card must be of uniform size and of the same quality and color of paper (except as permitted under IC 3-10-1-17).

(d) The nominees of a political party or an independent candidate or independent ticket (described in IC 3-11-2-6) nominated by petitioners shall be listed on the ballot with the name and device set forth on the certification or petition. The circle containing the device may be of any size that permits a voter to readily identify the device. IC 3-11-2-5 applies if the certification or petition does not include a name or device, or if the same device is selected by two (2) or more parties or petitioners. In the case of a candidate described in IC 3-8-2.5-2.5(a)(5)(C), a blank space **must be printed** after the candidate's name signifying that the candidate elects not to disclose any affiliation with a political party or that the candidate:

- (1) is not affiliated with a political party; and
- (2) does not identify as an independent candidate.

(e) The offices and public questions on the general election ballot must be placed on the ballot in the order listed in IC 3-11-2-12, ~~IC 3-11-2-12.4~~, IC 3-11-2-12.5, IC 3-11-2-12.7(b), IC 3-11-2-12.9(a),



IC 3-11-2-12.9(c), IC 3-11-2-13(a) through IC 3-11-2-13(c), IC 3-11-2-14(a), IC 3-11-2-14(d), and IC 3-11-2-14(e). The offices and public questions may be listed in a continuous column either vertically or horizontally and on a number of separate pages.

(f) The name of each office must be printed in a uniform size in bold type. A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate:

(1) "Vote for one (1) only.", if only one (1) candidate is to be elected to the office.

(2) "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. To vote for any candidate for this office, you must make a voting mark for each candidate you wish to vote for.", ~~A straight party vote will not count as a vote for any candidate for this office.~~, if more than one (1) candidate is to be elected to the office.

(3) "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. To vote for any candidate for this office, you must make a voting mark for each candidate you wish to vote for. A straight party vote will not count as a vote for any candidate for this office.", if more than one (1) candidate is to be elected to a school board office.

~~(3)~~ **(4) "Vote for one (1) only. A straight party vote will not count as a vote for any candidate for this office.", if only one (1) candidate is to be elected to a school board office.**

(g) Below the name of the office and the statement required by subsection (f), the names of the candidates for each office must be grouped together in the following order:

(1) The major political party whose candidate received the highest number of votes in the county for secretary of state at the last election is listed first.

(2) The major political party whose candidate received the second highest number of votes in the county for secretary of state is listed second.

(3) All other political parties listed in the order that the parties' candidates for secretary of state finished in the last election are listed after the party listed in subdivision (2).

(4) If a political party did not have a candidate for secretary of state in the last election or a nominee is an independent candidate or independent ticket (described in IC 3-11-2-6), the party or candidate is listed after the parties described in subdivisions (1), (2), and (3).



(5) If more than one (1) political party or independent candidate or ticket described in subdivision (4) qualifies to be on the ballot, the parties, candidates, or tickets are listed in the order in which the party filed its petition of nomination under IC 3-8-6-12.

(6) The name of a candidate described in IC 3-8-2.5-2.5(a)(5)(C) is placed after the candidates listed in subdivisions (1) through (5), if applicable.

(7) A space for write-in voting is placed after the candidates listed in subdivisions (1) through (6), if required by law.

(8) The name of a write-in candidate may not be listed on the ballot.

If there is more than one (1) candidate for a grouping described in subdivisions (1) through (8) for a school board office, the candidates shall appear in the order established by this subsection and within the grouping, in alphabetical order according to surname.

(h) The names of the candidates grouped in the order established by subsection (g) must be printed in type with uniform capital letters and have a uniform space between each name. The name of the candidate's political party, or the word "Independent" if the:

(1) candidate; or

(2) ticket of candidates for:

(A) President and Vice President of the United States; or

(B) governor and lieutenant governor;

is independent, must be placed immediately below or beside the name of the candidate and must be printed in a uniform size and type. In the case of a candidate described in IC 3-8-2.5-2.5(a)(5)(C), the name of the candidate must be printed with a blank space after the candidate's name signifying that the candidate elects not to disclose any affiliation with a political party or that the candidate is not affiliated with a political party and does not identify as an independent candidate.

(i) All the candidates of the same political party for election to at-large seats on the fiscal or legislative body of a political subdivision must be grouped together:

(1) under the name of the office that the candidates are seeking;

(2) in the order established by subsection (g); and

(3) within the political party, in alphabetical order according to surname.

A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate: "Vote for not more than (insert the number of candidates to be elected) candidate(s) of ANY party for this office."

(j) Candidates for election to at-large seats on the governing body



of a school corporation must be grouped:

- (1) under the name of the office that the candidates are seeking;
- and
- (2) in alphabetical order according to surname.

A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate: "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. A straight party vote will not count as a vote for any candidate for this office."

(k) The following information must be placed at the top of the ballot before the first public question is listed:

- (1) The cautionary statement described in IC 3-11-2-7.
- (2) The instructions described in IC 3-11-2-8, IC 3-11-2-10(d), and IC 3-11-2-10(e).

(l) The ballot must include a single connectable arrow, circle, oval, or square, or a voting position for voting a straight party ticket by one (1) mark as required by section 14 of this chapter, and the single connectable arrow, circle, oval, or square, or the voting position for casting a straight party ticket ballot must be identified by:

- (1) the name of the political party; and
- (2) immediately below or beside the political party's name, the device of that party (described in IC 3-11-2-5).

The name and device of each political party must be of uniform size and type and arranged in the order established by subsection (g) for listing candidates under each office. The instructions described in IC 3-11-2-10(c) for voting a straight party ticket and the statement concerning presidential electors required under IC 3-10-4-3 must be placed on the ballot label. The instructions for voting a straight party ticket must include the statement: "If you do not wish to vote a straight party ticket, do not make a mark in this section and proceed to voting the ballot by office."

(m) A public question must be in the form described in IC 3-11-2-15(a) and IC 3-11-2-15(b), except that a single connectable arrow, a circle, or an oval may be used instead of a square. Except as expressly authorized or required by statute, a county election board may not print a ballot card that contains language concerning the public question other than the language authorized by a statute.

(n) The requirements in this section:

- (1) do not replace; and
- (2) are in addition to;

any other requirements in this title that apply to optical scan ballots.

(o) The procedure described in IC 3-11-2-16 must be used when a



1 ballot does not comply with the requirements imposed by this title or
 2 contains another error or omission that might result in confusion or
 3 mistakes by voters.

4 (p) This subsection applies to an optical scan ballot that does not
 5 list:

- 6 (1) the names of political parties or candidates; or
- 7 (2) the text of public questions;

8 on the face of the ballot. The ballot must be prepared in accordance
 9 with this section, except that the ballot must include a numbered circle
 10 or oval to refer to each political party, candidate, or public question.

11 SECTION 9. IC 3-11-13-14, AS AMENDED BY P.L.195-2025,
 12 SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 13 JANUARY 1, 2027]: Sec. 14. (a) In partisan elections, the ballot labels
 14 must include a voting square or position where a voter may by one (1)
 15 voting mark on each card record a straight party ticket vote for all the
 16 candidates of one (1) political party, except for offices for which the
 17 voter:

- 18 (1) is required to cast an individual vote for a candidate under
- 19 IC 3-11-7-4(b); or
- 20 (2) has voted individually for a candidate for any other office.

21 (b) A ballot label must not include a voting square or position to
 22 permit a voter to cast a straight party ticket for a political party if:

- 23 (1) there are no candidates of that political party; or
- 24 (2) the only candidates:
 - 25 (A) of the political party; or
 - 26 (B) that have stated an affiliation with the political party under
 - 27 IC 3-8-2.5-2.5(a)(5);
 - 28 are for election to school board offices ~~or offices to which more~~
 - 29 ~~than one (1) individual is to be elected and~~ which will not be
 - 30 credited with a vote under ~~IC 3-12-1-7~~ or IC 3-12-1-7.1 if a voter
 - 31 casts a straight party ticket.

32 SECTION 10. IC 3-11-14-3.5, AS AMENDED BY SEA 25-2026,
 33 SECTION 3, AND BY THE TECHNICAL CORRECTIONS BILL OF
 34 THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS
 35 FOLLOWS [EFFECTIVE JANUARY 1, 2027]: Sec. 3.5. (a) Each
 36 county election board shall have the names of all candidates for all
 37 elected offices, political party offices, and public questions printed on
 38 ballot labels for use in an electronic voting system as provided in this
 39 chapter.

40 (b) The county may:

- 41 (1) print all offices and public questions on a single ballot label;
- 42 and



(2) include a ballot variation code to ensure that the proper version of a ballot label is used within a precinct.

(c) Each type of ballot label must be of uniform size and of the same quality and color of paper (except as permitted under IC 3-10-1-17).

(d) The nominees of a political party or an independent candidate or independent ticket (described in IC 3-11-2-6) nominated by petitioners must be listed on the ballot label with the name and device set forth on the certification or petition. The circle containing the device may be of any size that permits a voter to readily identify the device. IC 3-11-2-5 applies if the certification or petition does not include a name or device, or if the same device is selected by two (2) or more parties or petitioners. In the case of a candidate described in IC 3-8-2.5-2.5(a)(5)(C), a blank space **must be printed** after the candidate's name signifying that the candidate elects not to disclose any affiliation with a political party or that the candidate:

(1) is not affiliated with a political party; and

(2) does not identify as an independent candidate.

(e) The ballot labels must list the offices and public questions on the general election ballot in the order listed in IC 3-11-2-12, ~~IC 3-11-2-12.4~~, IC 3-11-2-12.5, IC 3-11-2-12.7(b), IC 3-11-2-12.9(a), IC 3-11-2-12.9(c), IC 3-11-2-13(a) through IC 3-11-2-13(c), IC 3-11-2-14(a), IC 3-11-2-14(d), and IC 3-11-2-14(e). Each office and public question may have a separate screen, or the offices and public questions may be listed in a continuous column either vertically or horizontally.

(f) The name of each office must be printed in a uniform size in bold type. A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate:

(1) "Vote for one (1) only.", if only one (1) candidate is to be elected to the office.

(2) "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. To vote for any candidate for this office, you must make a voting mark for each candidate you wish to vote for.", ~~A straight party vote will not count as a vote for any candidate for this office.~~, if more than one (1) candidate is to be elected to the office.

(3) "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. To vote for any candidate for this office, you must make a voting mark for each candidate you wish to vote for. A straight party vote will not count as a vote for any candidate for this office.", if more



1 **than one (1) candidate is to be elected to a school board office.**

2 ~~(3)~~ (4) "Vote for one (1) only. A straight party vote will not count
3 as a vote for any candidate for this office.", if only one (1)
4 candidate is to be elected to a school board office.

5 (g) Below the name of the office and the statement required by
6 subsection (f), the names of the candidates for each office must be
7 grouped together in the following order:

8 (1) The major political party whose candidate received the highest
9 number of votes in the county for secretary of state at the last
10 election is listed first.

11 (2) The major political party whose candidate received the second
12 highest number of votes in the county for secretary of state is
13 listed second.

14 (3) All other political parties listed in the order that the parties'
15 candidates for secretary of state finished in the last election are
16 listed after the party listed in subdivision (2).

17 (4) If a political party did not have a candidate for secretary of
18 state in the last election or a nominee is an independent candidate
19 or independent ticket (described in IC 3-11-2-6), the party or
20 candidate is listed after the parties described in subdivisions (1),
21 (2), and (3).

22 (5) If more than one (1) political party or independent candidate
23 or ticket described in subdivision (4) qualifies to be on the ballot,
24 the parties, candidates, or tickets are listed in the order in which
25 the party filed its petition of nomination under IC 3-8-6-12.

26 (6) The name of a candidate described in IC 3-8-2.5-2.5(a)(5)(C)
27 is placed after the candidates listed in subdivisions (1) through
28 (5), if applicable.

29 (7) A space for write-in voting is placed after the candidates listed
30 in subdivisions (1) through (6), if required by law. A space for
31 write-in voting for an office is not required if there are no
32 declared write-in candidates for that office. However, procedures
33 must be implemented to permit write-in voting for candidates for
34 federal offices.

35 (8) The name of a write-in candidate may not be listed on the
36 ballot.

37 If there is more than one (1) candidate for a grouping described in
38 subdivisions (1) through (8) for a school board office, the candidates
39 shall appear in the order established by this subsection and within the
40 grouping, in alphabetical order according to surname.

41 (h) The names of the candidates grouped in the order established by
42 subsection (g) must be printed in type with uniform capital letters and



1 have a uniform space between each name. The name of the candidate's
 2 political party, or the word "Independent", if the:

3 (1) candidate; or

4 (2) ticket of candidates for:

5 (A) President and Vice President of the United States; or

6 (B) governor and lieutenant governor;

7 is independent, must be placed immediately below or beside the name
 8 of the candidate and must be printed in uniform size and type. In the
 9 case of a candidate described in IC 3-8-2.5-2.5(a)(5)(C), the name of
 10 the candidate must be printed with a blank space after the candidate's
 11 name signifying that the candidate elects not to disclose any affiliation
 12 with a political party or that the candidate is not affiliated with a
 13 political party and does not identify as an independent candidate.

14 (i) All the candidates of the same political party for election to
 15 at-large seats on the fiscal or legislative body of a political subdivision
 16 must be grouped together:

17 (1) under the name of the office that the candidates are seeking;

18 (2) in the party order established by subsection (g); and

19 (3) within the political party, in alphabetical order according to
 20 surname.

21 A statement reading substantially as follows must be placed
 22 immediately below the name of the office and above the name of the
 23 first candidate: "Vote for not more than (insert the number of
 24 candidates to be elected) candidate(s) of ANY party for this office."

25 (j) Candidates for election to at-large seats on the governing body
 26 of a school corporation must be grouped:

27 (1) under the name of the office that the candidates are seeking;
 28 and

29 (2) in alphabetical order according to surname.

30 A statement reading substantially as follows must be placed
 31 immediately below the name of the office and above the name of the
 32 first candidate: "Vote for not more than (insert the number of
 33 candidates to be elected) candidate(s) for this office. A straight party
 34 vote will not count as a vote for any candidate for this office."

35 (k) The cautionary statement described in IC 3-11-2-7 must be
 36 placed at the top or beginning of the ballot label before the first public
 37 question is listed.

38 (l) The instructions described in IC 3-11-2-8, IC 3-11-2-10(d), and
 39 IC 3-11-2-10(e) may be:

40 (1) placed on the ballot label; or

41 (2) posted in a location within the voting booth that permits the
 42 voter to easily read the instructions.



(m) Except as provided in section 14.5 of this chapter, the ballot label must include a touch sensitive point or button for voting a straight political party ticket by one (1) touch, and the touch sensitive point or button must be identified by:

- (1) the name of the political party; and
- (2) immediately below or beside the political party's name, the device of that party (described in IC 3-11-2-5).

The name and device of each party must be of uniform size and type, and arranged in the order established by subsection (g) for listing candidates under each office. The instructions described in IC 3-11-2-10(c) for voting a straight party ticket and the statement concerning presidential electors required under IC 3-10-4-3 must be placed on the ballot label. The instructions for voting a straight party ticket must include the statement: "If you do not wish to vote a straight party ticket, press "NEXT" (or replace "NEXT" with the term used by that voting system to permit a voter to skip a ballot screen) to continue voting."

(n) A public question must be in the form described in IC 3-11-2-15(a) and IC 3-11-2-15(b), except that a touch sensitive point or button must be used instead of a square. Except as expressly authorized or required by statute, a county election board may not print a ballot label that contains language concerning the public question other than the language authorized by a statute.

(o) The requirements in this section:

- (1) do not replace; and
- (2) are in addition to;

any other requirements in this title that apply to ballots for electronic voting systems.

(p) The procedure described in IC 3-11-2-16 must be used when a ballot label does not comply with the requirements imposed by this title or contains another error or omission that might result in confusion or mistakes by voters.

SECTION 11. IC 3-11-14-14.5, AS AMENDED BY P.L.195-2025, SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JANUARY 1, 2027]: Sec. 14.5. A ballot label must not include a touch sensitive point or button to permit a voter to cast a straight party ticket for a political party if:

- (1) there are no candidates of that political party; or
- (2) the only candidates:
 - (A) of the political party; or
 - (B) that have stated an affiliation with the political party under IC 3-8-2.5-2.5(a)(5);



are for election to school board offices ~~or offices to which more than one (1) individual is to be elected and~~ which will not be credited with a vote under ~~IC 3-12-1-7 or~~ IC 3-12-1-7.1 if a voter casts a straight party ticket.

SECTION 12. IC 3-12-1-5, AS AMENDED BY P.L.195-2025, SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JANUARY 1, 2027]: Sec. 5. (a) This subsection does not apply to a ballot card voting system or an electronic voting system. Except as provided in subsection (d), a voting mark made by a voter on or in a voting square at the left of a candidate's name or political party's name shall be counted as a vote for the candidate or candidates of the political party.

(b) This subsection applies to a ballot card voting system. A voting mark made by a voter:

- (1) on or in a circle, oval, or square; or
- (2) to connect a connectable arrow;

immediately below or beside a candidate's name or political party's name shall be counted as a vote for the candidate or candidates of the political party, except as provided in subsection (d).

(c) This subsection applies to a direct record electronic voting system. A voting mark made by a voter touching a touch sensitive point or button below or beside a candidate's name or political party's name shall be counted as a vote for the candidate or candidates of the political party, except as provided in subsection (d).

(d) A voter who wishes to cast a ballot for a candidate for election to a school board office ~~or an at-large district to which more than one (1) person may be elected on a:~~

- ~~(1) county council;~~
- ~~(2) city common council;~~
- ~~(3) town council; or~~
- ~~(4) township board;~~

must make a voting mark for each individual candidate for whom the voter wishes to cast a vote. A straight ticket voting mark on a paper ballot, ballot card voting system, or electronic voting system shall not be counted as a straight party ticket voting mark as a vote for any candidate for **an a school board office. described by this subsection.**

SECTION 13. IC 3-12-1-7, AS AMENDED BY P.L.21-2016, SECTION 23, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JANUARY 1, 2027]: Sec. 7. (a) This subsection applies whenever a voter:

- (1) votes a straight party ticket; and
- (2) votes only for one (1) or more individual candidates who are



all of the same political party as the straight ticket vote.
 Except as provided in subsection (d), ~~or (e)~~, the straight ticket vote shall be counted and the individual candidate votes may not be counted.

(b) This subsection applies whenever:

- (1) a voter has voted a straight party ticket for the candidates of one (1) political party;
- (2) only one (1) person may be elected to an office; and
- (3) the voter has voted for one (1) individual candidate for the office described in subdivision (2) who is:

(A) a candidate of a political party other than the party for which the voter voted a straight ticket; or

(B) an independent candidate or declared write-in candidate for the office.

If the voter has voted for one (1) individual candidate for the office described in subdivision (2), the individual candidate vote for that office shall be counted, the straight party ticket vote for that office may not be counted, and the straight party ticket votes for other offices on the ballot shall be counted.

(c) This subsection applies whenever:

- (1) a voter has voted a straight party ticket for the candidates of one (1) political party; and
- (2) the voter has voted for more individual candidates for the office than the number of persons to be elected to that office.

The individual candidate votes for that office may not be counted, the straight party ticket vote for that office may not be counted, and the straight party ticket votes for other offices on the ballot shall be counted.

(d) This subsection applies whenever:

- (1) a voter has voted a straight party ticket for the candidates of one (1) political party;
- (2) more than one (1) person may be elected to an office; and
- (3) the voter has voted for **one (1) or more** individual candidates for the office described in subdivision (2) who are:

(A) independent candidates or declared write-in candidates;

(B) candidates of a political party other than the political party for which the voter cast a straight party ticket under subdivision (1); ~~or~~

(C) candidates of the same political party for which the voter cast a straight party ticket under subdivision (1); or
~~(D)~~ **(D)** a combination of candidates described in clauses (A), and (B), and (C).



The individual votes cast by the voter for the office for the independent candidates; declared write-in candidates; and the candidates of a political party other than the political party for which the voter cast a straight party ticket shall be counted unless the total number of these individual votes is greater than the number of persons to be elected to the office. The straight party ticket votes for the office shall not be counted. The straight party ticket votes for other offices on the voter's ballot shall be counted.

(c) This subsection applies whenever:

(1) a voter has voted a straight party ticket for the candidates of one (1) political party;

(2) more than one (1) person may be elected to an office; and

(3) the voter has voted for individual candidates for the office described in subdivision (2) who are:

(A) independent candidates; declared write-in candidates; or candidates of a political party other than the political party for which the voter cast a straight party ticket under subdivision (1); and

(B) candidates of the same political party for which the voter cast a straight party ticket under subdivision (1).

The individual votes cast by the voter for the office for the independent candidates; the declared write-in candidates; and the candidates of a political party other than the political party for which the voter cast a straight party ticket; and the candidates of the political party for which the voter cast a straight party ticket shall be counted unless the total number of these individual votes is greater than the number of persons to be elected to the office. The straight party ticket votes for the office shall not be counted. The straight party ticket votes for other offices on the voter's ballot shall be counted.

(f) (e) If a voter votes a straight party ticket for more than one (1) political party, the whole ballot is void with regard to all candidates nominated by a political party, declared write-in candidates, or candidates designated as independent candidates on the ballot. However, the voter's vote for a school board candidate or on a public question shall be counted if otherwise valid under this chapter.

(g) (f) If a voter does not vote a straight party ticket and the number of votes cast by that voter for the candidates for an office are less than or equal to the number of openings for that office, the individual candidates votes shall be counted.

(h) (g) If a voter does not vote a straight party ticket and the number of votes cast by that voter for an office exceeds the number of openings for that office, none of the votes concerning that office may be counted.



1 SECTION 14. IC 3-12-1-8, AS AMENDED BY P.L.195-2025,
 2 SECTION 16, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 3 JANUARY 1, 2027]: Sec. 8. (a) Except as provided in subsection (b),
 4 a voting mark made by a voter on or in a circle containing a political
 5 party device shall be counted as a vote for each candidate of that
 6 political party on that ballot.

7 (b) A voter who wishes to cast a ballot for a candidate for election
 8 to a school board office ~~or an at-large district to which more than one~~
 9 ~~(1) person may be elected on a:~~

- 10 ~~(1) county council;~~
- 11 ~~(2) city common council;~~
- 12 ~~(3) town council; or~~
- 13 ~~(4) township board;~~

14 must make a voting mark for each individual candidate for whom the
 15 voter wishes to cast a vote. A voting mark on or in a circle containing
 16 a political party device shall not be counted as a straight party ticket
 17 voting mark as a vote for any candidate for **an a school board office.**
 18 ~~described by this subsection.~~

19 SECTION 15. IC 3-12-1-15, AS AMENDED BY P.L.195-2025,
 20 SECTION 17, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 21 JANUARY 1, 2027]: Sec. 15. (a) This section does not apply to a
 22 candidate for a school board office, ~~or an at-large office of a county~~
 23 ~~council; city common council; town council; or township board;~~ if those
 24 ~~offices appear~~ **a school board office appears** on a ballot.

25 (b) This section applies to a vote cast for one (1) straight party ticket
 26 that includes a candidate for election to office who:

- 27 (1) ceases to be a candidate; and
- 28 (2) is succeeded by a candidate selected under IC 3-13-1 or
- 29 IC 3-13-2.

30 (c) A vote cast in the election for the original nominee is considered
 31 a vote cast for the successor.



COMMITTEE REPORT

Mr. Speaker: Your Committee on Elections and Apportionment, to which was referred House Bill 1377, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill do pass.

(Reference is to HB 1377 as introduced.)

WESCO

Committee Vote: Yeas 12, Nays 0

HOUSE MOTION

Mr. Speaker: I move that House Bill 1377 be amended to read as follows:

Page 3, strike lines 27 through 29.

Page 3, line 30, strike "(c)" and insert "**(b)**".

Page 3, line 35, strike "(d)" and insert "**(c)**".

Page 4, line 2, strike "12.4" and insert "**12**".

Page 6, line 32, strike "IC 3-11-2-12.4,".

Page 11, line 5, strike "IC 3-11-2-12.4,".

(Reference is to HB 1377 as printed January 14, 2026.)

PAYNE

COMMITTEE REPORT

Mr. President: The Senate Committee on Elections, to which was referred House Bill No. 1377, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 6, delete lines 2 through 42, begin a new paragraph and insert:

"SECTION 7. IC 3-11-11-10, AS AMENDED BY P.L.227-2023, SECTION 91, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. If an election is a general or municipal election and a voter desires to vote for all the candidates of one (1) political party or group of petitioners, the voter may make a voting mark on or in a large circle enclosing the device and before the name under which the candidates of the party are printed. The voter's vote

EH 1377—LS 6830/DI 144



shall then be counted ~~for all the candidates under that party name~~ in accordance with IC 3-12-1.

SECTION 8. IC 3-11-13-11, AS AMENDED BY SEA 25-2026, SECTION 2, AND BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. (a) The ballot information, whether placed on the ballot card or on the marking device, must be in the order of arrangement provided for ballots under this section.

(b) Each county election board shall have the names of all candidates for all elected offices, political party offices, and public questions printed on a ballot card as provided in this chapter. The county may:

- (1) print all offices and questions on a single ballot card; and
- (2) include a ballot variation code to ensure that the proper version of a ballot is used within a precinct.

(c) Each type of ballot card must be of uniform size and of the same quality and color of paper (except as permitted under IC 3-10-1-17).

(d) The nominees of a political party or an independent candidate or independent ticket (described in IC 3-11-2-6) nominated by petitioners shall be listed on the ballot with the name and device set forth on the certification or petition. The circle containing the device may be of any size that permits a voter to readily identify the device. IC 3-11-2-5 applies if the certification or petition does not include a name or device, or if the same device is selected by two (2) or more parties or petitioners. In the case of a candidate described in IC 3-8-2.5-2.5(a)(5)(C), a blank space **must be printed** after the candidate's name signifying that the candidate elects not to disclose any affiliation with a political party or that the candidate:

- (1) is not affiliated with a political party; and
- (2) does not identify as an independent candidate.

(e) The offices and public questions on the general election ballot must be placed on the ballot in the order listed in IC 3-11-2-12, ~~IC 3-11-2-12.4~~, IC 3-11-2-12.5, IC 3-11-2-12.7(b), IC 3-11-2-12.9(a), IC 3-11-2-12.9(c), IC 3-11-2-13(a) through IC 3-11-2-13(c), IC 3-11-2-14(a), IC 3-11-2-14(d), and IC 3-11-2-14(e). The offices and public questions may be listed in a continuous column either vertically or horizontally and on a number of separate pages.

(f) The name of each office must be printed in a uniform size in bold type. A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate:

EH 1377—LS 6830/DI 144



(1) "Vote for one (1) only.", if only one (1) candidate is to be elected to the office.

(2) "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. To vote for any candidate for this office, you must make a voting mark for each candidate you wish to vote for." ~~A straight party vote will not count as a vote for any candidate for this office.~~; if more than one (1) candidate is to be elected to the office.

(3) "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. To vote for any candidate for this office, you must make a voting mark for each candidate you wish to vote for. A straight party vote will not count as a vote for any candidate for this office.", if more than one (1) candidate is to be elected to a school board office.

~~(3)~~ (4) "Vote for one (1) only. A straight party vote will not count as a vote for any candidate for this office.", if only one (1) candidate is to be elected to a school board office.

(g) Below the name of the office and the statement required by subsection (f), the names of the candidates for each office must be grouped together in the following order:

(1) The major political party whose candidate received the highest number of votes in the county for secretary of state at the last election is listed first.

(2) The major political party whose candidate received the second highest number of votes in the county for secretary of state is listed second.

(3) All other political parties listed in the order that the parties' candidates for secretary of state finished in the last election are listed after the party listed in subdivision (2).

(4) If a political party did not have a candidate for secretary of state in the last election or a nominee is an independent candidate or independent ticket (described in IC 3-11-2-6), the party or candidate is listed after the parties described in subdivisions (1), (2), and (3).

(5) If more than one (1) political party or independent candidate or ticket described in subdivision (4) qualifies to be on the ballot, the parties, candidates, or tickets are listed in the order in which the party filed its petition of nomination under IC 3-8-6-12.

(6) The name of a candidate described in IC 3-8-2.5-2.5(a)(5)(C) is placed after the candidates listed in subdivisions (1) through (5), if applicable.

(7) A space for write-in voting is placed after the candidates listed



in subdivisions (1) through (6), if required by law.

(8) The name of a write-in candidate may not be listed on the ballot.

If there is more than one (1) candidate for a grouping described in subdivisions (1) through (8) for a school board office, the candidates shall appear in the order established by this subsection and within the grouping, in alphabetical order according to surname.

(h) The names of the candidates grouped in the order established by subsection (g) must be printed in type with uniform capital letters and have a uniform space between each name. The name of the candidate's political party, or the word "Independent" if the:

(1) candidate; or

(2) ticket of candidates for:

(A) President and Vice President of the United States; or

(B) governor and lieutenant governor;

is independent, must be placed immediately below or beside the name of the candidate and must be printed in a uniform size and type. In the case of a candidate described in IC 3-8-2.5-2.5(a)(5)(C), the name of the candidate must be printed with a blank space after the candidate's name signifying that the candidate elects not to disclose any affiliation with a political party or that the candidate is not affiliated with a political party and does not identify as an independent candidate.

(i) All the candidates of the same political party for election to at-large seats on the fiscal or legislative body of a political subdivision must be grouped together:

(1) under the name of the office that the candidates are seeking;

(2) in the order established by subsection (g); and

(3) within the political party, in alphabetical order according to surname.

A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate: "Vote for not more than (insert the number of candidates to be elected) candidate(s) of ANY party for this office."

(j) Candidates for election to at-large seats on the governing body of a school corporation must be grouped:

(1) under the name of the office that the candidates are seeking; and

(2) in alphabetical order according to surname.

A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate: "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. A straight party



vote will not count as a vote for any candidate for this office."

(k) The following information must be placed at the top of the ballot before the first public question is listed:

- (1) The cautionary statement described in IC 3-11-2-7.
- (2) The instructions described in IC 3-11-2-8, IC 3-11-2-10(d), and IC 3-11-2-10(e).

(l) The ballot must include a single connectable arrow, circle, oval, or square, or a voting position for voting a straight party ticket by one (1) mark as required by section 14 of this chapter, and the single connectable arrow, circle, oval, or square, or the voting position for casting a straight party ticket ballot must be identified by:

- (1) the name of the political party; and
- (2) immediately below or beside the political party's name, the device of that party (described in IC 3-11-2-5).

The name and device of each political party must be of uniform size and type and arranged in the order established by subsection (g) for listing candidates under each office. The instructions described in IC 3-11-2-10(c) for voting a straight party ticket and the statement concerning presidential electors required under IC 3-10-4-3 must be placed on the ballot label. The instructions for voting a straight party ticket must include the statement: "If you do not wish to vote a straight party ticket, do not make a mark in this section and proceed to voting the ballot by office."

(m) A public question must be in the form described in IC 3-11-2-15(a) and IC 3-11-2-15(b), except that a single connectable arrow, a circle, or an oval may be used instead of a square. Except as expressly authorized or required by statute, a county election board may not print a ballot card that contains language concerning the public question other than the language authorized by a statute.

(n) The requirements in this section:

- (1) do not replace; and
- (2) are in addition to;

any other requirements in this title that apply to optical scan ballots.

(o) The procedure described in IC 3-11-2-16 must be used when a ballot does not comply with the requirements imposed by this title or contains another error or omission that might result in confusion or mistakes by voters.

(p) This subsection applies to an optical scan ballot that does not list:

- (1) the names of political parties or candidates; or
- (2) the text of public questions;

on the face of the ballot. The ballot must be prepared in accordance



with this section, except that the ballot must include a numbered circle or oval to refer to each political party, candidate, or public question.".

Delete pages 7 through 8.

Page 9, delete lines 1 through 38.

Page 10, delete lines 18 through 42, begin a new paragraph and insert:

"SECTION 9. IC 3-11-14-3.5, AS AMENDED BY SEA 25-2026, SECTION 3, AND BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3.5. (a) Each county election board shall have the names of all candidates for all elected offices, political party offices, and public questions printed on ballot labels for use in an electronic voting system as provided in this chapter.

(b) The county may:

- (1) print all offices and public questions on a single ballot label; and
- (2) include a ballot variation code to ensure that the proper version of a ballot label is used within a precinct.

(c) Each type of ballot label must be of uniform size and of the same quality and color of paper (except as permitted under IC 3-10-1-17).

(d) The nominees of a political party or an independent candidate or independent ticket (described in IC 3-11-2-6) nominated by petitioners must be listed on the ballot label with the name and device set forth on the certification or petition. The circle containing the device may be of any size that permits a voter to readily identify the device. IC 3-11-2-5 applies if the certification or petition does not include a name or device, or if the same device is selected by two (2) or more parties or petitioners. In the case of a candidate described in IC 3-8-2.5-2.5(a)(5)(C), a blank space **must be printed** after the candidate's name signifying that the candidate elects not to disclose any affiliation with a political party or that the candidate:

- (1) is not affiliated with a political party; and
- (2) does not identify as an independent candidate.

(e) The ballot labels must list the offices and public questions on the general election ballot in the order listed in IC 3-11-2-12, ~~IC 3-11-2-12.4~~, IC 3-11-2-12.5, IC 3-11-2-12.7(b), IC 3-11-2-12.9(a), IC 3-11-2-12.9(c), IC 3-11-2-13(a) through IC 3-11-2-13(c), IC 3-11-2-14(a), IC 3-11-2-14(d), and IC 3-11-2-14(e). Each office and public question may have a separate screen, or the offices and public questions may be listed in a continuous column either vertically or horizontally.

(f) The name of each office must be printed in a uniform size in bold



type. A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate:

(1) "Vote for one (1) only.", if only one (1) candidate is to be elected to the office.

(2) "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. To vote for any candidate for this office, you must make a voting mark for each candidate you wish to vote for." ~~A straight party vote will not count as a vote for any candidate for this office.~~; if more than one (1) candidate is to be elected to the office.

(3) "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. To vote for any candidate for this office, you must make a voting mark for each candidate you wish to vote for. A straight party vote will not count as a vote for any candidate for this office.", if more than one (1) candidate is to be elected to a school board office.

~~(3)~~ **(4) "Vote for one (1) only. A straight party vote will not count as a vote for any candidate for this office.", if only one (1) candidate is to be elected to a school board office.**

(g) Below the name of the office and the statement required by subsection (f), the names of the candidates for each office must be grouped together in the following order:

(1) The major political party whose candidate received the highest number of votes in the county for secretary of state at the last election is listed first.

(2) The major political party whose candidate received the second highest number of votes in the county for secretary of state is listed second.

(3) All other political parties listed in the order that the parties' candidates for secretary of state finished in the last election are listed after the party listed in subdivision (2).

(4) If a political party did not have a candidate for secretary of state in the last election or a nominee is an independent candidate or independent ticket (described in IC 3-11-2-6), the party or candidate is listed after the parties described in subdivisions (1), (2), and (3).

(5) If more than one (1) political party or independent candidate or ticket described in subdivision (4) qualifies to be on the ballot, the parties, candidates, or tickets are listed in the order in which the party filed its petition of nomination under IC 3-8-6-12.

(6) The name of a candidate described in IC 3-8-2.5-2.5(a)(5)(C)



is placed after the candidates listed in subdivisions (1) through (5), if applicable.

(7) A space for write-in voting is placed after the candidates listed in subdivisions (1) through (6), if required by law. A space for write-in voting for an office is not required if there are no declared write-in candidates for that office. However, procedures must be implemented to permit write-in voting for candidates for federal offices.

(8) The name of a write-in candidate may not be listed on the ballot.

If there is more than one (1) candidate for a grouping described in subdivisions (1) through (8) for a school board office, the candidates shall appear in the order established by this subsection and within the grouping, in alphabetical order according to surname.

(h) The names of the candidates grouped in the order established by subsection (g) must be printed in type with uniform capital letters and have a uniform space between each name. The name of the candidate's political party, or the word "Independent", if the:

(1) candidate; or

(2) ticket of candidates for:

(A) President and Vice President of the United States; or

(B) governor and lieutenant governor;

is independent, must be placed immediately below or beside the name of the candidate and must be printed in uniform size and type. In the case of a candidate described in IC 3-8-2.5-2.5(a)(5)(C), the name of the candidate must be printed with a blank space after the candidate's name signifying that the candidate elects not to disclose any affiliation with a political party or that the candidate is not affiliated with a political party and does not identify as an independent candidate.

(i) All the candidates of the same political party for election to at-large seats on the fiscal or legislative body of a political subdivision must be grouped together:

(1) under the name of the office that the candidates are seeking;

(2) in the party order established by subsection (g); and

(3) within the political party, in alphabetical order according to surname.

A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate: "Vote for not more than (insert the number of candidates to be elected) candidate(s) of ANY party for this office.".

(j) Candidates for election to at-large seats on the governing body of a school corporation must be grouped:



- (1) under the name of the office that the candidates are seeking;
and
- (2) in alphabetical order according to surname.

A statement reading substantially as follows must be placed immediately below the name of the office and above the name of the first candidate: "Vote for not more than (insert the number of candidates to be elected) candidate(s) for this office. A straight party vote will not count as a vote for any candidate for this office."

(k) The cautionary statement described in IC 3-11-2-7 must be placed at the top or beginning of the ballot label before the first public question is listed.

(l) The instructions described in IC 3-11-2-8, IC 3-11-2-10(d), and IC 3-11-2-10(e) may be:

- (1) placed on the ballot label; or
- (2) posted in a location within the voting booth that permits the voter to easily read the instructions.

(m) Except as provided in section 14.5 of this chapter, the ballot label must include a touch sensitive point or button for voting a straight political party ticket by one (1) touch, and the touch sensitive point or button must be identified by:

- (1) the name of the political party; and
- (2) immediately below or beside the political party's name, the device of that party (described in IC 3-11-2-5).

The name and device of each party must be of uniform size and type, and arranged in the order established by subsection (g) for listing candidates under each office. The instructions described in IC 3-11-2-10(c) for voting a straight party ticket and the statement concerning presidential electors required under IC 3-10-4-3 must be placed on the ballot label. The instructions for voting a straight party ticket must include the statement: "If you do not wish to vote a straight party ticket, press "NEXT" (or replace "NEXT" with the term used by that voting system to permit a voter to skip a ballot screen) to continue voting."

(n) A public question must be in the form described in IC 3-11-2-15(a) and IC 3-11-2-15(b), except that a touch sensitive point or button must be used instead of a square. Except as expressly authorized or required by statute, a county election board may not print a ballot label that contains language concerning the public question other than the language authorized by a statute.

(o) The requirements in this section:

- (1) do not replace; and
- (2) are in addition to;



any other requirements in this title that apply to ballots for electronic voting systems.

(p) The procedure described in IC 3-11-2-16 must be used when a ballot label does not comply with the requirements imposed by this title or contains another error or omission that might result in confusion or mistakes by voters."

Delete pages 11 through 13.

Page 14, delete lines 1 through 13.

Re-number all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to HB 1377 as reprinted January 21, 2026.)

GASKILL, Chairperson

Committee Vote: Yeas 7, Nays 2.

SENATE MOTION

Mr. President: I move that Engrossed House Bill 1377 be amended to read as follows:

Replace the effective dates in SECTIONS 1 through 15 with "[EFFECTIVE JANUARY 1, 2027]".

(Reference is to EHB 1377 as printed February 17, 2026.)

JOHNSON T

